



U.S. Department  
of Transportation

**Pipeline and  
Hazardous Materials  
Safety Administration**

**June 15, 2006**

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-SP 14297

|                               |
|-------------------------------|
| EXPIRATION DATE: May 31, 2008 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Transition Packaging Inc.  
Lawrenceville, GA
2. PURPOSE AND LIMITATIONS:
  - a. This special permit authorizes the manufacture, mark, sale and use of a reusable, non-DOT specification woven plastic bag for the transportation in commerce of certain liquid hazardous materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.201, 173.202, 173.203 in that textile bags are not permitted as the outer packaging for combination packages containing liquids and § 173.28(b)(3) in that textile bags are not authorized for reuse except as specified herein.
5. BASIS: This special permit is based on the application of Southeast Testing & Engineering dated December 14, 2005, and additional information dated March 1, 2006, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Material Description                                             |                           |                       |                |
|----------------------------------------------------------------------------|---------------------------|-----------------------|----------------|
| Proper Shipping Name                                                       | Hazard Class/<br>Division | Identification Number | Packing Group  |
| All liquid hazardous materials authorized in a UN4G combination packaging. | As appropriate            | As appropriate        | As appropriate |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-UN standard woven plastic bag comprised of the following components:

(1) Outer Packaging: The outer packaging is made of three parts, fabricated as follows:

(i) A non-UN standard woven plastic outer bag of approximate dimensions of 19" x 16" with a 6" gusset. The bag is fabricated from 600 denier polyester, closed with a dual zipper seal and has a water resistant PVC backing. The outer packaging contains:

(A) A 2-part inner frame fabricated from six mil corrugated plastic. When installed the frame forms a closed rectangular shell around the inflatable inner cushioning and inner packagings. The approximate dimensions of the frame are 13-1/2" x 11" x 5-1/2".

(B) An inflatable cushion used to securely restrain the inner packagings within the inner plastic frame.

(2) The inner packaging intended to contain liquid hazardous materials are as follows:

(i) One or two glass or plastic bottles. The maximum quantity of liquid in one bottle or in the two bottles may not exceed 8 fluid ounces.

(ii) The bottle(s) are placed into polyurethane foam cushioning to secure and protect the inner bottles.

(iii) The bottles and cushion are wrapped in two non-reactive absorbent blankets that are each capable of absorbing up to 8 oz of liquid.

(iv) The bottles and cushions are then placed in a 4 mil polyethylene bag securely closed with a cable tie.

(3) A maximum of two inner packagings described above may be placed into the outer packaging for transport.

b. TESTING - Packagings must be design type tested and periodically retested in accordance with the requirements for a UN4G combination packaging.

c. OPERATIONAL CONTROLS -

(1) Prior to reuse the outer packaging, including the inner frame and the inflatable cushion, must be inspected by the shipper to ensure the packaging is acceptable for continued use and is capable of meeting the design test requirements for the initial design type. Each bag must be inspected to ensure that:

(i) Seams are free from defects in stitching, heat sealing or gluing which would render the packaging unsafe for transporting hazardous materials; and

(ii) Fabric used to construct the package is free from cuts, tears and punctures. Additionally, fabric must be free from scoring which may render the package unsafe for transport.

(2) The woven plastic bag may not be reused if the inner packagings have released the hazardous materials within the packaging.

(3) The zippers on the outer textile bag must be secured with a tamper evident seal after the hazardous materials are loaded into the packaging.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. A test report documenting satisfactory testing of the packaging in accordance with the requirements for a UN4G fiberboard box must be on file with Office of Hazardous Materials Special Permits and Approvals prior to the sale of these packagings.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of

this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Robert A. McGuire".

for Robert A. McGuire  
Associate Administrator  
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DBurger